



CHAPTER cx.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Leeds Torquay Wallasey and the Saint Austell Joint Hospital District.

A.D. 1920.

[4th August 1920.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 3) Act 1920.

Short title.

A.D. 1920.

SCHEDULE.

CITY OF LEEDS.

*Leeds Order. Provisional Order for altering the Leeds Corporation
(Consolidation) Act 1905.*

To the Lord Mayor Aldermen and Citizens of the City of
Leeds;—

And to all others whom it may concern.

5 Edw. 7. c. i. WHEREAS the City of Leeds (hereinafter referred to as "the City")
is an Urban Sanitary District of which the Lord Mayor Aldermen and
Citizens acting by the Council (hereinafter referred to as "the
Corporation") are the Urban Sanitary Authority and the unrepealed
provisions of the Leeds Corporation (Consolidation) Act 1905 (herein-
after referred to as "the Local Act") as altered by certain Provisional
Orders of the Local Government Board which were duly confirmed by
Parliament but which do not affect the subject-matter of this Order
are in force in the City;

And whereas by Section 118 of the Local Act the Corporation are
subject as provided in that section empowered from time to time to
demand and receive tolls rents stallages entrance fees and charges (not
exceeding the tolls rents stallages entrance fees and charges specified
in the Ninth Schedule to the Local Act) from persons selling or
offering or exposing for sale cattle corn meat or articles in any market
or fair of the Corporation or using or occupying shops stalls standings
or other conveniences in any such market or fair or frequenting any
such market or fair or using any weighing-house or place weights
measures scales or machines in any such market or fair or using any
slaughter-house or dead meat market of the Corporation;

And whereas the Corporation have made application to the Minister
of Health for the issue of a Provisional Order to alter or amend the
Local Act in the manner hereinafter set forth:

38 & 39 Vict. c. 55. Now therefore the Minister of Health in pursuance of the powers
given to him by Section 303 of the Public Health Act 1875 and of all
other powers enabling him in that behalf hereby orders that from and
after the date of the Act of Parliament confirming this Order the
Local Act shall be altered by the substitution for the tolls rents
stallages entrance fees and charges specified in the Ninth Schedule to
the Local Act of the tolls rents stallages entrance fees and charges
specified in the Schedule to this Order.

Alteration of
tolls &c. in
respect of
markets and
slaughter-
houses.

Short title.

And the Minister of Health further orders that this Order may be
cited as the Leeds Order 1920.

The SCHEDULE above referred to.

A.D. 1920.

Leeds Order.

TOLLS AND STALLAGES IN A COVERED MARKET.

s. d.

From the occupier of each butcher's shop stall or stand according to the size and dimensions of the same (namely):—

For each and every superficial square foot thereof inside measure:—

If taken by the year not exceeding	13	4
If taken by the half-year not exceeding	6	8
If taken by the quarter-year not exceeding	3	4
If otherwise taken or occupied for each market day or other day in the week not exceeding	0	2

From the occupier of each shop stall or stand for fruit or vegetables raised above the ground with progressive steps benches or otherwise according to the size and dimensions of the same (namely):—

For each and every superficial square foot thereof:—

If taken by the year not exceeding	13	4
If taken by the half-year not exceeding	6	8
If taken by the quarter-year not exceeding	3	4
If otherwise taken or occupied for each market day or other day in the week not exceeding	0	2

From the occupiers of each other shop stall stand or bench of whatever nature or kind according to the size and dimensions of the same (namely):—

For each and every superficial square foot thereof:—

If taken by the year not exceeding	13	4
If taken by the half-year not exceeding	6	8
If taken by the quarter-year not exceeding	3	4
If otherwise taken or occupied for each market day or other day in the week not exceeding	0	2

From the occupier of each compartment or space on the surface of the ground according to the size and dimensions of the same (namely):—

For each superficial square foot thereof:—

If taken by the year not exceeding	13	4
If taken by the half-year not exceeding	6	8
If taken by the quarter-year not exceeding	3	4
If otherwise taken or occupied for each market day or other day in the week not exceeding	0	2

[Ch. cx.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 3) Act, 1920.

A.D. 1920. From the occupier of each shop stall or stand in the fish s. d.
Leeds Order. markets according to the size and dimensions of the same
(namely):—

For each and every superficial square foot thereof—

If taken by the year not exceeding	...	...	13	4
If taken by the half-year not exceeding	...	...	6	8
If taken by the quarter-year not exceeding	...	...	3	4
If otherwise taken or occupied for each market day	...	...		
or other day in the week not exceeding	...	...	0	2

From every person exposing any article matter or thing for sale in any of the said markets and not occupying any stand shop stall or bench or any defined compartment or space on the surface of the ground:—

For every bull cow ox steer or heifer if sold by the carcass	...	...	3	0
For every calf sheep lamb or pig if sold by the carcass	...	...	1	6
And so in proportion for every less portion or quantity than the entire carcass.	...	...		
For every box of offal or other meat	...	...	1	0
For every basket or other package containing not more than twelve pounds weight of butter	...	...	0	3
And for every additional six pounds or any part of six pounds weight of butter	...	...	0	1½
For every package or basket containing not more than three dozen eggs	...	...	0	1½
And for every additional dozen or part of a dozen eggs	...	...	0	0½
For every five couple of rabbits or part of five couple	...	...	0	2
For every hare leveret pheasant partridge grouse or other game	...	...	0	1
For every live or dead duck goose or turkey	...	...	0	1
For every sucking or roasting pig	...	...	0	2
For any number of live or dead pigeons not exceeding twelve	...	...	0	2
And for every additional six pigeons or part of six pigeons beyond twelve	...	...	0	1
For every barrel box or other package of fish crabs or lobsters containing not more than 1 cwt.	...	...	0	6
And for every additional 56 lbs. weight or part of 56 lbs. weight	...	...	0	3
For every pad or other package of mackerel or other wet fish containing not more than fifty such fish	...	...	0	3
And for every additional 25 or part of 25	...	...	0	1
For every box or other package of bloaters or dried fish containing not more than 50 such fish	...	...	0	1½

	s.	d.	A.D. 1920.
And for every additional 25 or part of 25	0	1	<i>Leeds Order.</i>
For every bag or other package of oysters mussels whelks periwinkles or cockles containing not more than 1 cwt.	0	4	
And for every additional 56 lbs. or part of 56 lbs. ...	0	2	
For every waggon containing loose vegetables when loaded in the body only	3	0	
For every waggon containing loose vegetables when loaded on the wings or higher than the body of the waggon	5	0	
For every railway waggon or other waggon with gearing above the body of the same containing loose vegetables	5	0	
For every cart containing loose vegetables when loaded in the body only	1	6	
For every cart containing loose vegetables when loaded on the wings or higher than the body of the cart ...	2	6	
For every waggon containing privet quick mistletoe holly or other plants trees or shrubs	6	0	
For every cart containing privet quick mistletoe holly or other plants trees or shrubs	3	0	
For every five bundles of celery (each bundle containing not more than twelve sticks) or part of five bundles	0	2	
For every bunch of bananas	0	2	
For every 12 plants shrubs or trees	0	6	
For every load bag of potatoes	0	2	
For every half load bag of potatoes or for any less quantity	0	1	
For every cart load of potatoes not exceeding twelve sacks	2	0	
For every cart load of potatoes exceeding twelve sacks ...	3	0	
From the occupier of each compartment or space in the bird and poultry market according to size and dimen- sions of same two cages in height for each market day or other day in the week not exceeding for every lineal foot	0	6	
For every additional cage in height for every lineal foot	0	2	
For every basket crate box or other package containing not more than five head of ducks fowls or chickens ...	0	2	
For every additional five ducks fowls or chickens or part of five ducks fowls or chickens	0	2	
For any number of pigeons not exceeding twelve ...	0	3	
For every additional six pigeons or part of six pigeons	0	2	
For any quantity of other small birds not above enume- rated and not exceeding one dozen in number ...	0	3	
For every additional six or part of six other small birds not above enumerated	0	2	

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Orders Confirmation (No. 3) Act, 1920.

A.D. 1920.

Cart Stand.

<i>Leeds Order.</i> From the owner or person in charge of any cart or waggon	s.	d.
for each market day or other day in the week:—		
For the use of the stable and manger per horse ...	0	6
For each carrier's or porter's cart ...	0	2
For each cart or waggon other than a carrier's or porter's cart or waggon ...	0	1
For every motor vehicle steam or petrol driven ...	1	0
	2	0

In an open Market.

For each hand cart containing fruit or vegetables ...	1	6
For each waggon containing privet quick mistletoe holly plants trees shrubs or other vegetables ...	5	0
For each cart containing privet quick mistletoe holly plants trees shrubs or other vegetables ...	3	0
For each truck or hand cart containing privet quick mistletoe holly flowers or other plants trees or shrubs	1	6
For each stand or space occupied upon the floor for trees shrubs privet quick plants mistletoe holly or any other article matter or thing for each superficial square foot thereof not exceeding the sum of ...	0	1
For each basket or other package containing flowers herbs watercress or planting roots ...	0	2
	0	6
For any number of sieves or other packages of fruit or vegetables not exceeding five in number and containing not more than fifteen pounds weight in each ...	0	6
And in like proportion for each additional five sieves or other packages or any part of five sieves or other packages ...	0	6
For any number of sieves or other packages of fruit or vegetables not exceeding five in number containing more than fifteen pounds weight but not exceeding thirty pounds in weight in each ...	0	8
And in like proportion for each additional five sieves or other packages or any part of five sieves or other packages ...	0	8
For every drove of geese or turkeys not exceeding twenty in number ...	1	6
And for every additional ten geese or turkeys or any part of ten geese or turkeys ...	0	6
For every drove of ducks not exceeding twenty in number ...	1	0
And for every additional ten ducks or part of ten ducks	0	6

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Orders Confirmation (No. 3) Act, 1920.

	s.	d.	A.D. 1920.
For every live or dead goose or turkey otherwise exposed for sale	0	1	<i>Leeds Order.</i>
For every live or dead duck fowl or chicken otherwise exposed for sale	0	1	
For every couple or brace of hares leverets pheasants partridges or other game contained in a basket hamper or other package	0	2	
For every hare leveret or pheasant otherwise exposed for sale	0	1	
For every brace of partridges grouse or other game otherwise exposed for sale	0	1	
For every five couple of rabbits or part of five couple contained in a basket hamper or other package ...	0	2	

For Slaughtering Animals.

For every ox cow bull steer heifer or bullock not exceeding	3	0
For every sheep lamb goat or calf not exceeding ...	0	9
For every hog or pig except a sucking pig not exceeding	1	0
For every sucking pig not exceeding	0	2
For every horse mule or ass not exceeding	2	0

For Lairage.

For every ox cow bull steer heifer or bullock per night	0	4½
For every sheep lamb goat or calf per night	0	1
For every hog or pig... ..	0	2
For every horse mule or ass	0	4½

For Pens in the Cattle Market.

For bulls steers cows heifers or bullocks each pen per day	1	6
from	3	0
For every bull steer cow heifer or bullock brought or exposed for sale per day not exceeding	0	6
For each sheep lamb goat or calf per day not exceeding	0	1
For each horse mule or ass per day not exceeding ...	1	0

The above-mentioned tolls stallages rents and charges in the said markets to be paid and payable in respect of the occupation of any shop stall bench stand compartment or space of ground or for any pen or lair as well by the original taker or occupier thereof for a part or portion of the day or space of time as by any subsequent taker or occupier of the same for any part or portion of the day or space of time.

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Leeds Order.

For Weighing and Measuring.

s. d.

For weighing every waggon cart or carriage of any description any sum not exceeding	0	6
For weighing every bull ox cow or other like cattle ...	0	2
For weighing every five head of sheep or pigs or any part of five head of sheep or pigs	0	1
For weighing every article matter or thing of whatever description weighing not more than twenty pounds avoirdupois	0	0½
For weighing every article matter or thing of whatever description weighing more than twenty pounds but not exceeding two hundred and forty pounds avoirdupois	0	1
For weighing every article matter or thing of whatever description weighing more than two hundred and forty pounds avoirdupois	0	2
For measuring any quantity of goods articles matter or thing sold by measure not exceeding one bushel ...	0	0½
For measuring every quantity more than one bushel and not exceeding two bushels	0	1
And for every bushel beyond two bushels	0	0½
For measuring any quantity of goods articles matter or thing sold by measure not exceeding ten yards in length	0	1
For measuring every quantity more than ten yards and not exceeding twenty yards	0	2

In the Corn Exchange.

Per annum.

Rents and entrance and other fees:—

£ s. d.

For every person selling corn of his own growing in the farmer's market	0	5	0
For the entrance of every other person to the farmer's market not exceeding for each occasion on which he shall enter	0	0	2
For every grocery stand in the farmer's market ...	2	2	0
For every full stand in the factor's market	10	10	0
For every half stand in the factor's market	5	5	0
For every leather fair stand in the factor's market ...	2	2	0
For every leather fair stand and space not exceeding ten square yards in the factor's market	5	5	0

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	£	s.	d.	A.D. 1920.
For land agents carriers forwarding agents carters engineers millwrights milling engineers coal dealers sack dealers manure dealers insurance agents &c. each person	1	1	0	<i>Leeds Order.</i>
Space for advertisements and show cards according to size	{ 10 6 to 2 2 0			
For the annual rent of each office according to agree- ment not exceeding	100	0	0	

Given under the Official Seal of the Minister of Health this
Twenty-seventh day of April One thousand nine hundred
and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

BOROUGH OF TORQUAY.

*Provisional Order for altering the Torquay Corporation
Water Act 1903.*

*Torquay
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Torquay;—

And to all others whom it may concern.

WHEREAS the Borough of Torquay (herein-after referred to as "the
Borough") is an Urban District of which the Mayor Aldermen and
Burgesses acting by the Council (herein-after referred to as "the
Corporation") are the Urban District Council and the Local Authority
within the meaning of the Public Health Act 1875 and the unrepealed
provisions of the Torquay Corporation Water Act 1903 (herein-after
referred to as "the Local Act") as altered by the Torquay Order 1911
which Order was duly confirmed by Parliament are in force in the
Borough;

And whereas by Part III. of the Local Act certain powers were
conferred on the Corporation in relation to recreation grounds and the
management and regulation of the same including the making of bye-
laws in regard to certain matters;

And whereas by Section 51 of the Local Act the Corporation are
authorised subject as therein provided to set apart any portion of any
park garden or recreation ground for the time being belonging to or

A.D. 1920. held by them for certain games and for the other purposes therein
Torquay mentioned and by Section 52 of the Local Act the Corporation are
Order. authorised when the new recreation ground therein referred to is held
 by them and when the whole or any part thereof is so used or set
 apart for any special purpose as mentioned in Section 51 of the Local
 53 & 54 Vict. Act or for any of the purposes mentioned in the Public Health Acts
 c. 59. Amendment Act 1890 to close the same or such part thereof against
 the public and to demand and take or to permit to be demanded and
 taken such reasonable sums as the Corporation decide for the exclusive
 occupation of the said new recreation ground or any such portion
 thereof or for the admission of persons vehicles goods and things into
 the said new recreation ground or portion thereof so used or set apart
 and to exclude therefrom all persons vehicles goods and things unless
 payment be made of the reasonable sum demanded;

And whereas by Section 57 of the Local Act the Corporation were
 authorised to borrow money for certain purposes particularly mentioned
 in subsection (1) of that section and with the approval of the Local
 Government Board such further moneys as the Council might require
 for any of the purposes of that Act;

And whereas the Corporation propose to acquire by agreement
 certain lands known as the Torquay Golf Course and other adjoining
 lands situate at Petitor within the Borough with the buildings and
 fixtures thereon described in the First Schedule to this Order and to
 use such lands for the purposes of games;

And whereas the Corporation have in pursuance of their powers
 under the Public Health Acts acquired the land and premises known
 as Homelands described in the Second Schedule to this Order for the
 purposes of public walks and pleasure grounds and the Corporation
 propose to appropriate the said land and premises for educational
 purposes;

And whereas the Corporation have made application to the Minister
 of Health for the issue of a Provisional Order to alter or amend the
 Local Act as altered as aforesaid in the manner herein-after set forth:

38 & 39 Vict. Now therefore the Minister of Health in pursuance of the powers
 c. 55. given to him by Section 303 of the Public Health Act 1875 and by
 any other Statutes in that behalf hereby orders that from and after the
 date of the Act of Parliament confirming this Order the Local Act as
 altered as aforesaid shall be further altered so that the following
 provisions shall take effect that is to say:—

Authorising
 purchase of
 lands for golf
 and other
 games.

Art. I.—(1) The Corporation shall be empowered to purchase by
 agreement but not otherwise the lands and premises described in the
 First Schedule to this Order (hereinafter referred to as “the golf
 course and additional golf lands”).

[10 & 11 Geo. 5.] *Ministry of Health Provisional* [Ch. cx.]
Orders Confirmation (No. 3) Act, 1920.

(2) The provisions of Section 52 of the Local Act shall extend and apply to the golf course and additional golf lands if and when they are acquired by the Corporation. A.D. 1920.
Torquay
Order.

(3) The Corporation if and when the golf course and additional golf lands are acquired by them may further—

- (a) hold set apart lay out and maintain the golf course and additional golf lands for the purposes of the playing of golf and other games and provide any further buildings conveniences or necessary apparatus for such purposes;
- (b) make charges for the use of the golf course and additional golf lands or of any part thereof set apart and laid out by the Corporation for other games and of any buildings conveniences or apparatus provided in connexion therewith;
- (c) permit the use by any club or other body or person of the golf course and additional golf lands buildings conveniences or apparatus aforesaid subject to such charges and conditions as the Corporation may think fit;
- (d) let on lease or otherwise to any club company-body or persons any portion of the golf course and additional golf lands buildings or conveniences for such consideration and upon such terms and conditions as the Corporation may think fit;
- (e) make and enforce byelaws for regulating the use of the golf course and additional golf lands or so much thereof as may be set apart and laid out as aforesaid and the conduct of persons using the same or resorting thereto;
- (f) employ officers and servants in connexion with and for the purposes of the powers aforesaid; and
- (g) appropriate the golf course and additional golf lands or any portions thereof for any purpose approved by the Minister of Health.

(4) The provisions with respect to byelaws contained in Sections 182 to 185 of the Public Health Act 1875 shall apply to any byelaws made under paragraph (e) of subdivision (3) of this Article.

(5) The purchase of lands the construction of works and the provision of buildings conveniences and apparatus under the powers conferred upon the Corporation by this Article shall be deemed to be purposes of the Local Act for which the Corporation may with the approval of the Minister of Health borrow money under Section 57 of that Act: Borrowing
powers for
purposes of
this Article.

Provided that for the purposes of the application of Section 62 of the Local Act to any moneys borrowed under this subdivision the

A.D. 1920.

*Torquay
Order.*Application
of revenue
of golf
undertaking.

prescribed period for repayment shall be such period not exceeding sixty years as the Minister of Health may sanction.

(6)—(a) The Corporation shall keep the accounts in respect of the golf course and additional golf lands (herein-after referred to as "the golf undertaking") separate from their other accounts distinguishing therein capital from revenue and shall apply the moneys from time to time received by them by way of revenue from the golf undertaking in each year in the following manner and for the following purposes that is to say:—

First—In payment of the working and establishment expenses of the golf undertaking and the cost of maintenance of the same:

Secondly—In payment of the interest on moneys borrowed or re-borrowed for the purposes of the golf undertaking:

Thirdly—In providing for the discharge of moneys borrowed or re-borrowed for the purposes of the golf undertaking:

Fourthly—In altering and improving (if the Corporation think fit) any works in connexion with and for the purposes of the golf undertaking.

And the Corporation shall carry to the district fund of the Borough so much of any balance remaining in any year of the moneys received by way of revenue from the golf undertaking as may in their opinion not be required for the purposes thereof and for paying the current expenses connected therewith.

(b) Any deficiency in the revenue of the golf undertaking shall be forthwith made good out of the district fund and general district rate of the Borough.

(c) The provisions of this subdivision shall cease to apply to any part of the golf course and additional golf lands appropriated in pursuance of paragraph (g) of subdivision (3) of this Article.

Authorising
appropria-
tion of land
for educa-
tional pur-
poses.

Art. II. The Corporation may appropriate free from any restrictions imposed by the Public Health Acts the land and premises described in the Second Schedule to this Order for any of the purposes of the Education Acts 1870 to 1919.

Short title.

Art. III. This Order may be cited as the Torquay Order 1920.

THE FIRST SCHEDULE.

All those pieces or parcels of land situate in the Parish of Saint Mary Church in the County of Devon together with the buildings erected and now standing thereon or on some part thereof (except the Golf Pavilion) delineated in the plan annexed to an indenture of

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cx.]
Orders Confirmation (No. 3) Act, 1920.

conveyance dated the 12th day of November 1896 and made between the Liquidation Estates Purchase Company Limited of the first part the Lands Distribution Company Limited of the second part and Helena Anna Evans and Harry Evans of the third part and therein coloured pink all which premises are (for the purpose of facilitating the identification thereof) described in detail as follows:—

A.D. 1920.
Torquay
Order.

No. on Plan.	Description.	Cultivation.	Quantity.		
			a.	r.	p.
312	Outer Moor	Pasture	7	1	31
313	Mare	Ditto	5	0	4
314	Langland and Pit Close	Ditto	5	2	15
315	Outer Park	Ditto	2	1	36
316	Willow Plot	Ditto	4	2	7
361	Ben Orchard	Ditto	3	1	28
362	Petitwell &c.	Lane &c.			17
363	Fore Down	Arable	7	1	21
364	Alacre	Pasture	4	0	7
366A	Petitor Park	Arable	5	0	16
366B	Ditto	Pasture	4	2	26
Part of 667	Water Lake	Ditto	1	2	23
668	Pettle Park	Ditto	1	3	38
669A	Hobby Hay	Ditto	3	0	10
669B	Grand Stand Meadow	Ditto	6	3	16
679	Grand Stand Paddock	Ditto		3	8
680	Building yards &c.	Ditto		1	29
680B	Gardens in occupation of O. Clay				20
680A	Gregory's Orchard	Pasture Orchard		2	30
681	Gregory's Paddock	Pasture		2	15
		Total	65	3	37

together with the land over which exists the present right of public way to the Race Course and Golf Course from Petitor Road there (being a slip of land 36 feet in width);

All that piece or parcel of land situate at Petitor in the Parish of Saint Mary Church aforesaid situate on the north side of Petitor Road and having a frontage to that road of 125 feet or thereabouts and more particularly delineated and coloured pink on the plan No. 2 hereinafter referred to together with the Golf Pavilion or Club House and buildings erected thereon or on some part thereof;

All those several pieces of land situate at Petitor in the Parish of Saint Mary Church aforesaid and containing by admeasurement 42 acres 3 roods and 26 perches or thereabouts and more particularly delineated and coloured pink on the plan No. 3 hereinafter referred to;

The Plans No. 2 and No. 3 hereinbefore mentioned are the plans which have been made in duplicate and each of which is sealed with the Official Seal of the Minister of Health one of each of which plans is deposited in the office of the Minister and the other shall be deposited in the office of the Town Clerk of the Borough.

A.D. 1920.

THE SECOND SCHEDULE.

*Torquay
Order.*

All that close or parcel of land with the hedges thereof containing together by estimation two acres or thereabouts formerly called or known as Great Robour and numbered 1436 on the Tithe Commutation map together with the messuage or tenement standing or being thereon called "Homelands" with the lodge stable coach-house and out-buildings belonging thereto all which premises are situate at or near Warborough Road within the manor of Saint Mary Church and in the Parish of Saint Mary Church in the County of Devon.

Given under the Official Seal of the Minister of Health this First day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

BOROUGH OF WALLASEY.

*Wallasey
Order.*

*Provisional Order for altering the Wallasey Improvement
Act 1867 and the Local Government Board's
Provisional Orders Confirmation (No. 1)
Act 1918.*

To the Mayor Aldermen and Burgesses of the Borough of Wallasey ;—

And to all others whom it may concern.

30 & 31 Vict.
c. cxxxii.
8 & 9 Geo. 5.
c. i.

WHEREAS the Borough of Wallasey (hereinafter referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority and there are in force in the Borough the unrepealed provisions of the Wallasey Improvement Act 1867 (hereinafter referred to as "the Local Act") as altered by the Wallasey Order 1918 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1918 (which Order and Act are hereinafter respectively referred to as "the Order of 1918" and "the Confirming Act of 1918") and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

And whereas by virtue of Section 20 of the Local Act the Corporation are authorised to demand and receive for the use of their New Brighton Egremont and Seacombe Ferries across the River Mersey

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between the Borough and the City of Liverpool (hereinafter referred to as "the ferries") and for the conveyance of passengers animals and goods in any boat for the time being used in connection with the ferries any tolls not exceeding the sums mentioned in Schedule (C.) to the Local Act annexed ;

A.D. 1920.
Wallasey
Order.

And whereas by the Order of 1918 it was provided subject as therein mentioned that notwithstanding anything contained in Section 20 of the Local Act the Corporation might demand and receive for the use of the ferries and the conveyance of passengers in any boat used in connection therewith tolls exceeding the sums mentioned in Schedule (C.) to the Local Act subject however to the proviso that any toll so demanded and received for the conveyance of passengers should not in any case exceed by more than fifty per centum the amount of the corresponding toll mentioned in the said Schedule ;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter the Local Act and the Confirming Act of 1918 in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act of 1918 so far as it relates to the Order of 1918 shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. Notwithstanding anything contained in the Local Act as altered by the Order of 1918 the Corporation may demand and receive for the use of the ferries and the conveyance of passengers animals and goods in any boat used in connection therewith such reasonable tolls as the Corporation with the approval of the Minister of Transport may from time to time determine :

Increase of
tolls for use
of ferries.

Provided that the tolls chargeable at the date of the Act of Parliament confirming this Order shall continue to be chargeable until other tolls shall be so determined with the approval of the Minister of Transport.

Art. II. This Order may be cited as the Wallasey Order 1920. Short title.

Given under the Official Seal of the Minister of Health this
First day of May in the year One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

A.D. 1920.

SAINT AUSTELL JOINT HOSPITAL DISTRICT.

*Saint Austell
Order.*

*Provisional Order for forming a United District under
Section 279 of the Public Health Act 1875.*

To the Urban District Council of Saint Austell;—

To the Rural District Council of Saint Austell;—

And to all others whom it may concern.

38 & 39 Vict.
c. 55. WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 279 of the said Act and by any other Statutes in that behalf hereby orders as follows viz.:—

Definitions.

Art. I. In this Order—

- (1) The expression “the appointed day” means the date of the Act of Parliament confirming this Order;
- (2) The expression “the Schedule” means the Schedule to this Order;
- (3) The expression “the Act” means the Public Health Act 1875;
- (4) The expression “the Minister” means the Minister of Health;
- (5) The expression “Constituent District” means a district named in column 1 of the Schedule and the expression “Constituent Districts” means both the districts so named;
- (6) The expression “Constituent Authority” means a district council named in column 2 of the Schedule and the expression “Constituent Authorities” means both the district councils so named;
- (7) The expression “the Joint Board” means the governing body of the United District to be formed in pursuance of this Order.

Commence-
ment of
Order.

Art. II. This Order shall come into operation from and after the appointed day.

Formation
of district.

Art. III. The Constituent Districts shall be formed into a United District to be called the Saint Austell Joint Hospital District for the purposes of the provision maintenance and management for the use of

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cx.]
Orders Confirmation (No. 3) Act, 1920.

the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious disease. A.D. 1920.

*Saint Austell
Order.*

Art. IV. The Joint Board shall consist of two ex-officio and ten elective members and shall be called the Saint Austell Joint Hospital Board. Constitution of governing body.

Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities. Ex-officio and elective members.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members. Number and qualification of elective members.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board. Disqualifications for members. 56 & 57 Vict. c. 73.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Minister may allow and five days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority. Date of first election.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Minister within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board. Notification to Minister of members first elected.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen: Tenure of office of members.

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall

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Orders Confirmation (No. 3) Act, 1920.

A.D. 1920. subject to the provisions of Article VII. of this Order be re-eligible
Saint Austell as a member of the Joint Board if at the time of re-election he is
Order. qualified to be so re-elected.

Supply of Art. XI. Any vacancy occurring amongst the elective members of
vacancies. the Joint Board by death resignation disqualification or otherwise
shall be filled up by the Constituent Authority in whose representation
the vacancy happens at a meeting to be held within six weeks of the
occurrence of the vacancy or within such further period as the
Minister determines and five days' previous notice in writing of
the said meeting shall be given or sent to each member of the
Constituent Authority by the clerk to that authority and the clerk
shall forthwith notify in writing to the clerk to the Joint Board the
names address and occupation of the person elected to fill the said
vacancy.

Meetings. Art. XII.—(1) The time and place of holding the first meeting of
the Joint Board shall be fixed by the Minister and the subsequent
ordinary meetings of the Joint Board shall be held at such times
and places as the Joint Board may appoint and at all meetings of
the Joint Board five members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to
the Joint Board when a requisition for that purpose is addressed to
him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other
than that specified in the requisition shall be transacted at the
extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered
or sent by post so as to reach the last known place of abode or
business in England of each member of the Joint Board three clear
days before the day of meeting or at such earlier time as the Joint
Board direct.

Committees. (5) The Joint Board may appoint committees consisting of mem-
bers of the Joint Board for the exercise of any powers which in the
opinion of the Joint Board can be properly exercised by committees
but the acts of every such committee shall unless otherwise directed
by the Joint Board be submitted to the Joint Board for approval
Provided that a committee so appointed shall in no case be authorised
to borrow money or to issue any precept for contributions or to enter
into any contract and any such committee shall be subject to the
provisions of Part IV. of the First Schedule to the Local Government
Act 1894 so far as they are applicable.

Appoint- Art. XIII. The Joint Board shall at their first meeting or at an
ment and adjournment thereof and thereafter as occasion requires appoint a
remuneration chairman (who shall subject to the provisions of Articles VII. and X.
of officers.

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cx.]
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of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite. The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

A.D. 1920.

Saint Austell
Order.

Art. XIV.—(1) Persons shall be admitted into a hospital provided by the Joint Board in any of the following modes and not otherwise except with the consent of the Constituent Authorities viz.:—

Mode of admission into hospitals.

(a) By an order of the Joint Board or of a Constituent Authority;

(b) By an order of a medical officer of health of a Constituent Authority;

(c) By an order of a medical officer appointed by the Joint Board; or

(d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

(2) If the board of guardians of the Saint Austell Union and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from that board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under those sections so far as the same are applicable viz.:—

Powers rights duties &c. of Joint Board.

Of the Act:—

Sections 122 123 131 and 132 (as amended by Section 60 of the Public Health Acts Amendment Act 1907) relating to infectious diseases and hospitals.

7 Edw. 7.
c. 53.

Sections 173 and 174 (except subsection (3)) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

[Ch. cx.] *Ministry of Health Provisional* [10 & 11 Geo. 5.]
Orders Confirmation (No. 3) Act, 1920.

A.D. 1920. <i>Saint Austell</i> <i>Order.</i>	Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit. Sections 251 253 and 254 and Sections 258 to 262 and 265 to 267 and Section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings. Section 298 as to costs of Provisional Orders. Sections 306 to 309 including miscellaneous provisions.
47 & 48 Vict. c. 74.	Of the Public Health (Officers) Act 1884 :— Section 2.
48 & 49 Vict. c. 53.	Of the Public Health (Members and Officers) Act 1885 :— Section 2.
Power for Minister to make regu- lations for prevention of epidemic diseases.	Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "prevention of epidemic diseases" be a local authority so as to enable the Minister by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Minister from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority so far as the same may be required to be exercised in pursuance of the said regulations.
Saving hos- pital powers of Constit- uent Autho- rities till hospital provided.	Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the use of the inhabitants of their district.
Notice of provisions as to recovery of cost of maintenance.	Art. XVIII. A copy of Section 132 of the Act and of Section 60 of the Public Health Acts Amendment Act 1907 shall be exhibited in a conspicuous place at the principal entrance of the hospital or hospitals.
Expenses of Joint Board.	Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums received from the Constituent Authorities in respect of patients as hereinafter provided and the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients. (2) To the common fund so far as the same is not provided by the aforesaid payments each Constituent Authority shall contribute in the proportion which the assessable value of the Constituent District of that Constituent Authority bears to the aggregate assessable values of the Constituent Districts and for the purposes of this provision the assessable value of a Constituent District shall mean the rateable value of the parish or the aggregate of the rateable values of the several parishes

comprised in the district according to the valuation lists in force on the Thirty-first day of March in the year prior to the issue of the precept reduced by an amount equal to one-half of the rateable value or the aggregate of one-half of the rateable value of the agricultural land in the same parish or parishes according to the said valuation lists.

A.D. 1920.
Saint Austell
Order.

Art. XX.—(1) The cost of maintenance of patients shall be ascertained in accordance with the rules hereinafter set forth namely:—

Calculation
and payment
of cost of
maintenance
of patients.

(a) Within twenty-one days after the Thirty-first day of March and the Thirtieth day of September in each year the Joint Board shall ascertain the proportionate part of the total cost of the maintenance of the several patients who have been in the hospital during the previous half-year which will represent the average daily cost in respect of each patient;

(b) The cost of maintenance of patients shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment and in and about their clothing and shall also include during any day in which a patient has been in the hospital the remuneration and rations of temporary nurses but shall not include the cost of the repairs to the hospital or to the fittings and furniture thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses.

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of each patient received during the previous half-year into the hospital from the district of that authority after deducting any sum recovered by the Joint Board from or repaid to the Joint Board by or for that patient—

(a) the name and address of the patient;

(b) the number of days in the half-year during which the patient has remained in the hospital; and

(c) the amount calculated according to the rules in subdivision (1) of this Article set forth and claimed as being due from the Constituent Authority.

(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the patient has been received into the hospital and shall be included in any precept which the Joint Board issue to the Constituent Authority under Section 284 of the Act stating the sums to be contributed by the

A.D. 1920. Constituent Authority towards the common fund of the United District and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

Saint Austell Order.

Inspection of accounts.

Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Abstract of accounts and auditor's report.

Art. XXII. A copy of the abstract of the accounts of the Joint Board and of any report made by the auditor to the Joint Board shall be sent by the Joint Board to each Constituent Authority as soon as can be after the completion of the audit.

Power for Minister to adapt provisions of Order on alterations of Constituent Districts.

Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Minister may by order to be published as he directs make such provision as to him seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Settlement of differences.

Art. XXIV. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions.

Short title.

Art. XXV. This Order may be cited as the Saint Austell Joint Hospital Order 1920.

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Orders Confirmation (No. 3) Act, 1920.

The SCHEDULE above referred to.

A.D. 1920.

Saint Austell
Order.

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Urban District of Saint Austell.	The Urban District Council of Saint Austell.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	3
The Rural District of Saint Austell.	The Rural District Council of Saint Austell.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	7

Given under the Official Seal of the Minister of Health this
Thirtieth day of April One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

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